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Case Number: 25STCV19134 Hearing Date: August 17, 2026 Dept: 224

Andersen v. Ford Motor Company et al.,

TENTATIVE RULING

The demurrer is OVERRULED in part and SUSTAINED with LEAVE TO AMEND in part. The Motion to Strike is GRANTED, with leave to amend.

The Case Management Conference is continued to December 11, 2026 at 8:30 a.m.

Introduction

On July 1, 2025, Plaintiff filed a Complaint arising out of Plaintiff's warranty contract with Defendants Ford Motor Company ("Ford") and Norm Reeves Ford Lincoln Hyundai ("Norm Reeves") regarding a 2018 Ford Explorer, VIN 1FM5K7F88JGB33194 ("Subject Vehicle").

On November 3, 2025, Plaintiff filed a First Amended Complaint.

On December 5, 2025, Defendants filed the instant Demurrer and Motion to Strike to Plaintiff's Complaint.

On May 5, 2026, Plaintiff filed an opposition to Defendant's Demurrer and Motion to Strike.

On August 10, 2026, Defendants filed a reply.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP § 430.41)

The Declaration of Chen Fei Liud, executed on December 5, 2025, sets forth the meet and confer efforts by Defendants' counsel to resolve the disputes informally via video conference. The Court finds that the parties conferred as required by Code of Civil Procedure § 430.41

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Statute of Limitations

To sustain demurrer to the complaint based on a statute of limitations defect, "the defect must clearly and affirmatively appear on the face of the complaint.... A demurrer will not lie where the action may be but is not necessarily barred."

(Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46 Cal.App.5th 1103, 1117.)

Defendants argue that Plaintiff's first through fourth causes of action for Song- Beverly claims are time-barred under Code Civ. Proc., § 871.21, subd. (b). Defendants also argue that Plaintiff's sixth cause of action for Fraudulent Concealment is time-barred under Code Civ. Proc., § 338, subd. (d). For the reasons discussed below, the Court finds the FAC, as currently pled, is time-barred under section 871.21 with respect to Plaintiffs' Song-Beverly claims. The Court finds that the sixth cause of action is not time-barred under section 338.

Under Code Civ. Proc., § 871.21, subd. (b), "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b), italics added.) Section 871.20 identifies the scope of claims which are governed by section 871.21's limitations period, and states in relevant part:

(a) [T]his chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.

(Code Civ. Proc., § 871.20.) Based on the language of section 871.20, subd. (a) and the allegations, remedies, and penalties sought in the FAC, the Court finds that the six-year limitations period under section 871.21, subd. (b) governs all four of Plaintiff's Song-Beverly claims. (See FAC, ¶¶ 28, 53-55, 57, 59-62, 65; Prayer, ¶¶ b, f.)

Moreover, Plaintiff's arguments regarding the inapplicability of section 871.21 to this particular action are also unpersuasive. First, Plaintiff contends that section 871.21 did not become effective until July 1, 2025. Plaintiff is incorrect. Contrary to Plaintiffs' assertion, the statute became effective on January 1, 2025. (See Code Civ. Proc., § 871.21.) Thus, section 871.21 was operative at the time that Plaintiff filed this action on July 1, 2025.

Second, Plaintiff contends that Ford had not opted into the new procedures at the time this action was filed. However, Ford, in their reply, stated that Ford complied with the opt-in provision of the statutory framework on April 25, 2025. Thus, Sections 871.20-871.28 apply to cases in which Ford is a defendant.

Third, Plaintiff contends that section 871.21 cannot be retroactively applied. “[A] statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application.” (McClung v. Emp. Dev. Dep’t (2004) 34 Cal.4th 467, 475.) Here, Code Civ. Proc., § 871.30(a) expressly permits a manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20(a) “with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.” (See Code Civ. Proc., § 871.30(a), emphasis added.) Thus, once Ford opted-in pursuant section 871.29, Plaintiff’s Vehicle would be subject to these provisions. (Code Civ. Proc., § 871.30.) Accordingly, Plaintiff has not demonstrated that the applicable statute of repose does not govern the limitations period for the instant action.

Applying section 871.21, subd. (b) to the facts alleged in the FAC, the Court finds the first through fourth causes of action are time-barred. In this case, Plaintiffs allegedly entered a warranty contract with Ford on October 27, 2018. (FAC, ¶¶ 7-8, Exh. A.) While Plaintiffs do not explicitly allege the date on which they purchased the Vehicle, it can be reasonably inferred that the Vehicle was delivered to Plaintiffs on or around the date they received Ford’s written warranty. (Id., ¶¶ 7-9.)

Absent tolling, the filing deadline under Code Civ. Proc., § 871.20, subd. (b) would have expired six years later, on or around October 27, 2024. Even so, Plaintiffs did not file the instant lawsuit until July 1, 2025, over eight months after the expiration of the six-year limitations period.

While Code Civ. Proc., § 871.21, subd. (c) does provide limited tolling exceptions to the above limitations period, Plaintiffs have not alleged sufficient facts to establish that any of the three tolling exceptions apply here. More factual details must be added into an amended pleading to successfully invoke the exceptions enumerated under subdivision (c). While Plaintiffs generally allege various equitable tolling doctrines, these boilerplate allegations are wholly conclusory and lack sufficient factual details clarifying how such tolling doctrines apply here, such as specific dates on which Plaintiffs sought repairs or when Plaintiffs reasonably should have discovered Ford’s wrongdoing. (FAC, ¶¶ 34-51.) Plaintiffs also fail to cite any legal authority which is specific to Song Beverly claims which permits a plaintiff to avoid the six-year limitations period by invoking equitable tolling grounds not specifically enumerated under Code Civ. Proc., § 871.21, subd. (c). Accordingly, the Court finds Plaintiffs’ Song- Beverly claims are time-barred under CCP § 871.21, subd. (b).

As to Plaintiff’s sixth cause of action, the Court finds that Plaintiff’s fraud claim is not barred by the statute of limitations. Plaintiff’s sixth cause of action is subject to a three-year limitations period under Code Civ. Proc. § 338, subd. (d).

In this case, Plaintiff purchased his Vehicle around October 27, 2018. (FAC, ¶ 7.) Plaintiff alleges Ford “concealed a known defect from Plaintiff” and that “Ford and its agents have actively concealed the Engine Defect and failed to disclose this defect to Plaintiff at the time of purchase of the Subject Vehicle or thereafter.” (Id., ¶¶ 77, 82.) Based on these allegations, Defendants argue that the FAC does not pled the specific circumstances of repair, or what occurred leading up to Plaintiff’s belated discovery of the defect. As a result, Defendants argue that there are no allegations indicating that Plaintiff’s fraud claim did not expire around October 27, 2021. Because Plaintiff filed the instant action on July 1, 2025, Defendants argue the action is untimely. The Court disagrees.

The three-year limitations period under section 338(d) begins to run when the aggrieved party suspects or should suspect that her injury is caused by wrongdoing. (Brandon G. v. Gray (2003) 111 Cal.App.4th 29, 35.) Here, Plaintiff alleges that the defect became apparent only after repeated failed repair attempts, and that she was unaware of Ford’s concealment until shortly before filing the complaint. (FAC ¶ 36-37.) Plaintiff also invokes several tolling doctrines, including class action tolling, the discovery rule, fraudulent concealment, the repair doctrine, and Emergency Rules Related to COVID-19. (FAC ¶¶ 34-51.) These allegations are sufficient at the pleading stage, as a demurrer based on statute of limitations can only be sustained where the defect clearly and affirmatively appears on the face of the complaint.

Therefore, Ford's demurrer based on its statute of limitations defense is SUSTAINED with LEAVE TO AMEND with respect to Plaintiffs' first through fourth causes of action and OVERRULED with respect to Plaintiffs' sixth cause of action.

Sixth Cause of Action: Fraudulent Inducement – Concealment

Duty to Disclose

Defendants argue that Plaintiff has not pled a transactional relationship between Ford and Plaintiff which gives rise to a duty to disclose.

“There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (Limandri v. Judkins (1986) 52 Cal.App.4th 326, 336 [internal citations omitted].) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, the other three circumstances in which nondisclosure may be actionable presuppose the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . A relationship between the parties is present [only] if there is some sort of transaction between the parties.” (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187; see Nissan Motor Acceptance Cases (2021) 63 Cal.App.5th 793.) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, (2017) 7 Cal.App.5th at 312.)

Here, Plaintiff has alleged that Defendants issued warranties directly on Plaintiff's vehicle, and the Subject Vehicle was purchased at Ford's authorized retail dealership Norm Reeves Ford Lincoln Superstore (FAC, ¶¶ 7, 11.) Thus, a transactional relationship exists pursuant to Dhital, wherein the court found that the plaintiffs' allegations were sufficient to establish a relationship requiring the manufacturer to disclose known defects. There, plaintiffs bought the car from a Nissan dealership, and Nissan backed the car with an express warranty. The court noted that Nissan's authorized dealerships were its agents for the purposes of selling Nissan vehicles to consumers (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828).

Further, the claim is based on both Defendant's superior knowledge and Defendant's knowing and intentional concealment (Id. ¶¶ 82-104). Plaintiff has alleged Defendant had exclusive knowledge of, failed to disclose and concealed the existence of the transmission defect in order to ensure Plaintiff's purchase of the Subject Vehicle. (Id.)

A duty to disclose has been pled.

Defendant's demurrer is OVERRULED on this ground.

Specificity

However, even where a duty exists, a plaintiff must still plead the circumstances of fraudulent concealment with particularity. (Rattagan v. Uber Techs., Inc. (2024) 17 Cal.5th 1, 43–44.)

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.] [Citation.]” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.)

Ordinarily, “fraud must be pleaded specifically; general and conclusory allegations do not suffice.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.). “This particularity requirement necessitates pleading facts which show how, where, to whom, and by what means” the alleged fraud occurred. (Id.) The purpose of the particularity requirement is to “separate meritorious and nonmeritorious cases, if possible in advance of trial.” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.)

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. (Rattagan v. Uber Techs., Inc. (2024) 17 Cal. 5th 1, 43–44, citing Goodman v. Kennedy (1976) 18 Cal.3d 335, 347; Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248; Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.) In Rattagan, the court held that it had to determine whether the plaintiff alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties’ contract. If the duty allegedly arose by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts, as the plaintiff alleged there, the Court found that the complaint also had to include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission. “[M]ere conclusory allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff] ... are insufficient for the foregoing purposes.” (Goodman, at p. 347.) (Rattagan, supra, 17 Cal. 5th at 43–44).

Defendants argue that Plaintiff has not pled this cause of action with the requisite specificity. Namely, Defendants argue that Plaintiff failed to allege the specific defect that Ford allegedly concealed. Defendants argue that the FAC merely describes a list of ways in which 2018 Ford Explorer engines may be defective, but they do not specify the actual defect in the subject vehicle.

The Court agrees with Defendants’ argument that Plaintiff’s sixth cause of action is not pled with sufficient specificity. Plaintiff’s FAC states that “ the 3.5L engine and/or its related components installed in the Subject Vehicle suffer from one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine (the “Engine Defect”).” (FAC ¶ 78). The pleading does not specify the defect or defects in the Subject Vehicle allegedly concealed by Defendant, such as for example, the specific component of the engine that is defective, or the actual malfunctions of the engine. As currently pled, the FAC merely establishes the possibility of malfunctions in the Subject Vehicle (“can result in loss of power...”), rather than the actual defects presented in the Subject Vehicle. (See FAC ¶¶ 79, 80).

The demurrer is SUSTAINED on this ground, with leave to amend.

The Economic Loss Rule

Defendants further argue that the Economic Loss Rule bars Plaintiff’s sixth cause of action.

The economic loss rule posits that a purchaser of a product that does not live up to the buyer’s expectations can only recover in contract and not tort, “unless [the purchaser] can demonstrate harm above and beyond a broken contractual promise.” (Food Safety Net Services v. Eco Safe Systems USA, Inc. (2012) 209 Cal.App.4th 1118, 1130.) A tort claim for fraud must be sufficiently independent from a breach of contract claim for which the plaintiff suffered economic loss. (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 991.)

The Court of Appeal in Dhital addressed Nissan’s assertion that, under Robinson Helicopter, the Buyer’s cause of action is barred pursuant to the Economic Loss Rule because the cause of action concerns fraudulent concealment (as opposed to affirmative misrepresentations). The Court ultimately held that “[u]nder California law, the economic loss rule does not bar plaintiffs’ claim here for fraudulent inducement by concealment. Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court, and plaintiffs allege fraudulent conduct that is independent of Nissan’s alleged warranty breaches.” (Dhital v. Nissan N. Am., Inc. (2022) 84 Cal.App.5th 828, 843, citing Robinson Helicopter, supra

34 Cal.4th at 989–90.)

In *Rattagan v. Uber Techs. (2024) Inc.*, 17 Cal. 5th 1 (Rattagan), the California Supreme Court addressed the question left unanswered in *Robinson Helicopter* regarding the applicability of the economic loss rule in the context of a fraudulent concealment claim, holding that “an independent fraudulent concealment tort may arise during an ongoing contractual relationship.” (Id. at p. 19 [emphasis original].)

Framed more specifically, the court stated:

“Can a plaintiff assert an independent claim of fraudulent concealment in the performance of a contract? The answer to this question is also yes. A plaintiff may assert a tort claim for fraudulent concealment based on conduct occurring in the course of a contractual relationship, if the elements of the cause of action can be established independently of the parties’ contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the agreement.”

(Rattagan, *supra*, 17 Cal. 5th 1 at p. 38.)

In other words, as long as the plaintiff can establish all the required elements of the cause of action independently of the parties’ contractual rights and obligations and can demonstrate an exposure to risks of harm beyond those reasonably expected as a result of a contractual breach, then a cause of action for concealment may lie.

(*Ibid.*) As stated in Rattagan, “it has long been the rule that where a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for the fraud.” (Id. at p. 41.)

Plaintiff’s sixth cause of action alleges Defendant was aware and knew that the 3.5L engine in the Vehicle was defective but failed to disclose this fact to Plaintiff prior to, at the time of sale, and thereafter (FAC ¶¶ 82-84), thereby alleging a claim for fraudulent concealment rather than affirmative representations. (See Dhital at p. 841 [“independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant’s conduct in fraudulently inducing someone to enter a contract is separate from the defendant’s later breach of the contract or warranty provisions that were agreed to.”; finding the economic loss rule did not preclude vehicle buyers’ fraudulent inducement-concealment claim against the vehicle manufacturer, where the buyers’ allegations concerned fraudulent conduct before the sale, which was therefore separate from the manufacturer’s performance under the contractual or warranty provisions.]).

Here, the Court is guided by Dhital and concludes Plaintiff’s sixth cause of action is not barred by the Economic Loss Rule. As stated in Dhital, “the economic loss rule does not bar plaintiffs’ claim . . . for fraudulent inducement by concealment.” (Dhital, *supra*, at p. 9.)

As such, the economic loss rule does not bar Plaintiff’s fraud cause of action as a matter of law.

The demurrer is OVERRULED on this ground.

Fifth Cause of Action: Negligent Repair

Defendants further demur to the fifth cause of action in the FAC for Negligent Repair against Dealer Norm Reeves on the grounds that the Economic Loss Rule bars Plaintiff’s claim.

To plead a claim for negligent repair, a plaintiff must allege the elements of negligence. "Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty." (Lopez v. S. Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; Crouse v. Brobeck (1998) 67 Cal.App.4th 1509, 1532 (a plaintiff need only state what occurred, and generally that the acts were negligently done, but "need no state the specific act or omission constituting negligent conduct.")) Likewise, causation may be alleged "succinctly and generally, unless the pled facts 'do not naturally give rise to an inference of causation...'" (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78, internal citations omitted.)

In order to plead around the economic loss rule, a party must plead the existence of a duty that arises independent of any contractual duty and independent injury, other than economic loss, that arises from the breach of that duty. (Robinson Helicopter, supra, 34 Cal.4th at 991. 988-91.) "In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.)

Here, Plaintiff's negligent repair claim is brought against Dealer Norm Reeves only (not Ford). Plaintiff allegedly delivered the Vehicle to Norm Reeves for repairs "on at least one occasion." (FAC, ¶ 72.) Plaintiff generally alleges that Norm Reeves "owed a duty to Plaintiff to use ordinary care and skill in storage, preparation, and repair" of the Vehicle "in accordance with industry standards." (Id., ¶ 73.) Indeed, "[a]ny individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner." (Civ. Code, § 1796.5.) Thus, Plaintiff has sufficiently pled an independent duty.¿

However, Plaintiff's negligent repair claim is devoid of factual detail clarifying how Norm Reeves acted negligently. Plaintiff alleges Norm Reeves breached its duty to Plaintiff "by failing to properly store, prepare and repair [the Vehicle] in accordance with industry standards." (Id., ¶ 74.) Plaintiff further alleges Norm Reeves' "negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages." (Id., ¶ 75.) Plaintiff must at least include facts indicating what is alleged to have occurred with enough factual detail to put Norm Reeves on notice of the claim brought against it. For example, the FAC is vague and uncertain as to the nature or type of storage and/or repairs that Norm Reeves was supposedly hired to perform on the Vehicle, and fails to allege how Norm Reeves conduct deviated from industry norms. Additionally, the FAC does not allege any facts indicating what type of damages were sustained by Plaintiff. Without more factual detail as to what Norm Reeves allegedly did or failed to do, it cannot be inferred that its negligent acts or omissions caused Plaintiff to suffer a particular injury, economic or otherwise. Thus, while the Economic Loss Rule may not necessarily bar Plaintiff's Negligent Repair claim, Plaintiff has not adequately pled her cause of action for negligent repair.¿

The demurrer to the fifth cause of action is SUSTAINED with leave to amend.

Motion to Strike

Defendants move to strike Plaintiff's prayer for punitive damages from the FAC on the grounds the FAC fails to state facts sufficient to support the recovery of punitive damages.

Civil Code § 3294(a) authorizes the recovery of punitive damages in non-contract cases "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294(c)(1)-(3).)

As reviewed above, the Court finds that Plaintiff's fraud-based claim is not sufficiently pled with regard to specificity to survive general demurrer.

Accordingly, the Court GRANTS Defendant's Motion to Strike Plaintiff's punitive damage request based on Plaintiff's fraudulent concealment claim. Because the Court has allowed Plaintiff leave to amend to address the specificity issues in the sixth cause of action and punitive damages may be awarded upon a properly pled fraud claim (See Civil Code § 3294), the ruling as to Plaintiff's sixth cause of action is without prejudice – Plaintiff may plead punitive damages upon amendment of her sixth cause of action.

Defendant's Motion to Strike Punitive Damages from Plaintiff's FAC is GRANTED as to the sixth cause of action for Fraudulent Inducement – Concealment, with leave to amend.

Conclusion

The demurrer is SUSTAINED with leave to amend. The Motion to Strike is GRANTED, with leave to amend.

Plaintiff shall file her Amended Complaint within 20 days.

The Case Management Conference is continued to December 11, 2026 at 8:30 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.